THE STATE

Versus

WELLINGTON MOYO

IN THE HIGH COURT OF ZIMBABWE
KABASA J with Assessors Mr J. Ndubiwa and Mr J. Zulu
HWANGE 5 AND 6 MARCH 2026

Criminal trial

M. Munsaka, for the state
C. Manyeza, for the accused

KABASA J: - The 6th of April 2025 started as a normal day at Ndabezinhle Zulu's homestead in Gwelutshena. Ndabezinhle and the accused's duties on this day were to harvest sunflowers whilst the now deceased and one Welcome were to pull logs for the construction of a granary. Ndabezinhle and the accused were using knives and so the accused was in possession of a home-made knife.

After the now deceased and Welcome had completed their task and were unyoking the oxen, accused approached from behind and used the home-made knife to stab the now deceased. The now deceased ran for about 50 metres, collapsed and died.

The accused appeared before us charged with the murder of the now deceased. He pleaded not guilty to the charge.

In his defence he did not deny using a home-made knife to stab the now deceased. He however said he was acting in self-defence because Ndabezinhle, the deceased and Welcome approached him armed with axes and a steel bar. They pushed him and challenged him to a fight. He then stabbed the now deceased on the back.

The knife which was used to stab the deceased had the following dimensions:-

Length – 27 cm

Handle – 10 cm

Circumference of handle – 9 cm

Length of blade – 17 cm

Diameter of blade – 2,5 cm

Tip of knife – 4 mm

Weight – 115 g

The post-mortem report gave the cause of death as: –

1. Hypovolemic shock

2. Lung laceration, haemothorax

3. Stab wound on the back

The pathologist observed a 2 cm long perforating wound on the back next to the right scapula at level of the 3rd intercoastal space. The lung vessels were ruptured and there was a laceration of the superior lobe of the right lung.

Evidence was led from two witnesses, Ndabezinhle and Welcome. Their evidence was straightforward and to the point. They gave the impression of people who were merely relating what they observed and nothing else. Ndabezinhle is a 47 year old man, the deceased was his sister's son and the accused is a son to his uncle. He is the one who assigned tasks to the accused, deceased and Welcome. He then saw accused chasing after the deceased and later learnt that the deceased had been stabbed. The accused later complained that the deceased used to deny him food.

Welcome's evidence corroborated Ndabezinhle's with regards to who had a weapon on this day. Welcome and the deceased were not armed and when the deceased was stabbed he had his back to the accused.

Is the defence of self available to the accused? He accepted that he stabbed the deceased at the back but said the deceased came from behind and pushed him inviting him to fight. If the deceased was behind him how then did the accused manage to stab him at the back? And if all that the deceased did was push him, was the use of a knife necessary? He accepted chasing after the deceased after stabbing him. Is that behaviour expected from one who had to use a knife because he felt threatened? Why chase after the threat and not make good his escape?

Why would a 47 year old man gang up with a 17 and 16 year old to attack a 20 year old? We ask these questions just to show how improbable the accused's story is.

Asked why he stabbed the deceased he responded:-

"He was stealing my clothes and denying me food."

This complaint is what he said to Ndabezinhle on being questioned as to why he had stabbed the deceased. The response he gave under cross-examination dove-tails with what he said to Ndabezinhle in an attempt to explain his behaviour. The denial of food or theft of clothes did not happen on this day. If indeed this story is true, all it goes to show is that the accused harboured ill feelings against the deceased and that is why he stabbed him without any provocation.

The position of the stab wound is indicative of the fact that the deceased was facing the other way and had his back towards the accused. Welcome's evidence on how the stabbing occurred is therefore supported by the post-mortem report.

The defence of self is provided for in s253 of the Criminal Code. The law sets out requirements that must be met for such a defence to succeed. When such requirements are met, defence of self can be a complete defence.

The very first requirement is that of an unlawful attack, commenced or imminent. *In casu* there was no attack at all. The accused was the aggressor. With that finding it serves no purpose to consider the rest of the requirements.

We got the distinct impression that the accused is a young man who has very little respect for the truth. He even lacked conviction as he tried to explain why he stabbed the now deceased. It was as if he just had to say something and whether his story made sense or not was the least of his worries.

Granted he need not convince the court about the truthfulness of his story (*R* v *Difford* 1937 AD 370) but his story is not looked at in isolation. When one juxtaposes his story with the evidence, including the post-mortem, it was evident his story was not only improbable but beyond doubt false.

Why would one wield a knife and used it to stab a human being with such force as to perforate the lung and rupture the blood vessels. The deceased stood no chance and it must

have been adrenalin that saw him fleeing for 50 m before he collapsed and shortly thereafter died.

The accused must have realised the real risk or possibility that he could end the deceased's life but continued nonetheless.

We are therefore satisfied the state has proved its case beyond a reasonable doubt and accordingly find him guilty as charged.

Sentence

You are a 21 year old first offender. You are single and have no children. You were raised by your mother after your parents divorced. You went up to Grade 7 and resorted to gold panning in order to eke out a living. Youthfulness denotes immaturity and that leads to irrational behaviour.

Youthfulness is therefore a strong mitigatory factor (*S* v *Zaranyika & Ors* 1995 (1) ZLR 270 (H).

What we considered in aggravation is the fact that you do not appear to regret your actions. You were smiling throughout the trial as if what you did is to be applauded. You used a weapon, a lethal one at that.

A young life was unnecessarily lost. The deceased was only 17 years old. You snuffed out whatever dreams he had. You had only been to this homestead for 3 weeks as a visitor and you caused the family so much pain by taking their loved one in such a senseless manner.

The first witness explained how the whole family is devasted and is still to recover from the tragic incident.

The deceased had not done anything to you to deserve your conduct. You did not render any assistance when you chased after him and saw that he had collapsed. You did not assist with funeral expenses.

Were it not for your youthful age, we would not have hesitated to impose a sentence of 20 years. We must not as the court approach sentence with a vengeful attitude (*S* v *Ndlovu* HB 46-96).

Your youthfulness has spared you 20 years but not 15 years.

You are accordingly sentenced to 15 years imprisonment.

The knife is to be destroyed.

National Prosecuting Authority, state's legal practitioners
Mhaka Attorneys, accused's legal practitioners